

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: August 20, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Arch Insurance Company vs. Star Hardware, Inc. 2024-01437363	1. Demurrer to Amended Complaint 2. Demurrer to Amended Complaint 3. Demurrer to Amended Complaint <i>Hearings continued per stip filed 8/3/26.</i>
2	Cruz vs. Vergara 2025-01471462	Motion to Quash Subpoena Plaintiff Rodrigo Cruz's motion to quash the subpoena served on Cruz's employer Amazon Fresh Marketplace is GRANTED IN PART. The court will permit the discovery but limits the deposition subpoena to the following: 12-month limitation for attendance records; Job descriptions, physical requirements, and records reflecting physical limitations, restrictions, accommodations, or injury reports, limited to 3 years. No other documents shall be produced. Plaintiff Cruz to give notice.
3	Frey Environmental, Inc vs. Fietas 2025-01458158	1 - 3. Motion to Be Relieved as Counsel of Record <i>Hearings vacated. See minute order dated 8/18/26.</i>
4	Gilroy vs. Awad 2025-01514965	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <i>Hearings continued. See minute order dated 8/18/26.</i>
5	Lee vs. Kim 2022-01268609	Motion for Leave to File Amended Complaint <i>Hearing vacated. See minute order dated 8/18/26.</i>
6	Picaso vs. CTG Auto, LLC 2025-01521074	Motion to Compel Arbitration Defendants CTG Auto, LLC, Nissan Motor Acceptance Company LLC, and JP Morgan Chase Bank, NA's Motion to Compel Arbitration is GRANTED. (See Code Civ. Proc. § 1281.2.) Plaintiff Eden N. Picaso shall submit her First, Second, Fourth, Eighth, and Ninth Causes of Action, alleged against Defendants CTG Auto, LLC and JP Morgan Chase Bank, NA to binding

	arbitration pursuant to the terms of the agreement to arbitrate contained in the Retail Installment Sale Contract, dated January 31, 2024. (See ROA 61 [“Ayala Decl.”] at ¶7, Ex. B.) Plaintiff does not challenge the authenticity or enforceability of this agreement to arbitrate. Plaintiff does, however, note that claims of injunctive relief are carved out from the scope of the arbitration provision. Accordingly, the motion is GRANTED as to these causes of action, alleged against Defendants CTG Auto, LLC and JP Morgan Chase Bank, NA, <u>but any claim for injunctive relief shall not be referred to arbitration and be decided by this court.</u> Plaintiff Eden N. Picaso’s Tenth Cause of Action for declaratory relief against Defendants CTG Auto, LLC, Nissan Motor Acceptance Company, LLC and JP Morgan Chase Bank, NA is STAYED pending the outcome of the arbitration of Plaintiff’s claims against CRG Auto, LLC and JP Morgan Chase Bank, NA. Upon Plaintiff’s election, this cause of action may be arbitrated before the AAA arbitrator alongside the 1st-4th and 8th-9th causes of action. If Plaintiff refuses to agree to arbitrate this cause of action before the AAA Arbitrator, then this claim is stayed pending the completion of that arbitration. Upon completion of arbitration before the AAA Arbitrator, this cause of action may be submitted to a JAMS arbitrator, or other agreed-upon arbitrator, consistent with the agreement of the parties to arbitrate claims arising out of the motor vehicle lease dated June 10, 2022. (See Ayala Decl. at ¶5, Ex. A.) It is clear from the arbitration clause in the lease agreement, that Plaintiff may choose JAMS, or AAA, or “any other organization subject to our approval.” The express language grants Plaintiff the right to elect between JAMS, AAA or another arbitrator approved by Defendant. The “subject to our approval” language in the lease refers to “any other organization” agreed upon by the parties. Defendant provides no reasoned basis why the Court should depart from the terms of the arbitration agreement covering this claim. Since permitting this claim to be arbitrated separately from the 1st – 4th and 8th-9th causes of action would lead to a risk of conflicting rulings, the Court finds that a stay of the arbitration of the tenth cause of action pending the completion of the other arbitration is warranted if the parties cannot agree to arbitration concurrently with AAA. With respect to the 5th-7th causes of action alleged against Nissan North America, Inc., the Court sets a status conference re:
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		severance of Plaintiff's Lemon Law claims. Plaintiff and Nissan North America, Inc., may stipulate to sever the 5th-7th causes of action, or stay those causes of action until the completion of arbitration on other claims. If the parties cannot stipulate, each may file a brief not to exceed 10 pages, no earlier than 9 court days before the status conference, addressing the party's position regarding whether Plaintiff's Lemon Law claims should be severed or stayed pending the arbitration of the other claims. With respect to the 11th Cause of Action seeking to recover from Defendant's bond obtained pursuant to Veh. Code section 11710, the matter is STAYED pending the completion of the arbitration proceedings. (Code Civ. Proc. §1281.4.) The remainder of this action, including any claim for injunctive relief, is STAYED pending the outcome of the arbitrations. (Code Civ. Proc. §1281.4.) The jury trial scheduled for August 16, 2027 is vacated. An Alternative Dispute Resolution Review Hearing is scheduled for March 19, 2027 at 8:30 a.m. in Department C44 as to those causes of action in arbitration. A Status Conference Re Severance of Plaintiff's Lemon Law Claims (Causes of Action 5-7) is scheduled for November 20, 2026 at 8:30 a.m. in Department C44. Moving Defendants shall provide notice.
7	Pinzon vs. Opes Investments Inc. 2025-01509447	Motion for Arbitration Provision <i>Hearing continued. See minute order dated 8/18/26.</i>
8	Streker vs. Cobb 2024-01449117	Motion for Leave to File Cross Complaint <i>Hearing vacated. See minute order dated 8/18/26.</i>
9	Wicker vs. Volkswagen Group of America, Inc. 2025-01532708	Demurrer to Complaint Defendant Unstoppable Automotive Group AMV LLC, dba Audi Mission Viejo's demurrer to the 5th cause of action for negligent repair in plaintiff David Wicker's Complaint is OVERRULED, as this cause of action states sufficient facts. (Code Civ. Proc., § 430.10, subd. (e); <i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [elements]; Complaint, ¶¶ 47-48 [duty created by delivery

		of vehicle for repairs, and to perform repairs “in accordance with industry standards”], 49 [breach by “failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards”], 50 [proximately caused damages].) This cause of action alleges violation of a tort duty independent of any contractual obligation associated with the sale of the vehicle, such that the economic loss rule does not apply. (Complaint, ¶ 48; <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 23 [“the economic loss rule does not act as an absolute bar to tort recovery in every case in which the parties have a contractual relationship”]; see also <i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 780–781 [economic loss rule “would seem to have little or no application when the commercial relationship of the parties does not involve the sale of goods or products, nor the rules developed under the law merchant and the Uniform Commercial Code, but rather relates only to the performance of services”].) A specific damages amount need not be alleged at the pleading stage. (<i>Furia v. Helm</i> (2003) 111 Cal.App.4th 945, 957 [notwithstanding Code Civ. Proc., § 425.10, subd. (a)(2), specific damages allegations are only necessary when seeking a default judgment; otherwise, “the absence of a specific amount from the complaint is not necessarily fatal as long as the pleaded facts entitle the plaintiff to relief”].) Finally, while the notice of demurrer also cites Code of Civil Procedure section 430.10, subdivision (f), the moving papers do not show how the 5th cause of action, or the Complaint generally, is so uncertain that moving party cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against it. (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; see also <i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695 [demurrers for uncertainty should be “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond”]; <i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135 [uncertainty demurrers strictly construed “because ambiguities can reasonably be clarified under modern rules of discovery”].) Motion to Strike The motion to strike punitive damages by defendants Volkswagen Group of America, Inc. and Unstoppable Automotive Group AMV
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		LLC, dba Audi Mission Viejo is GRANTED IN PART, with leave to amend, and DENIED IN PART. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) The motion is GRANTED, with leave to amend, as to defendant Unstoppable Automotive Group AMV LLC, dba Audi Mission Viejo. This defendant is only named in the 5th cause of action for negligent repair, and there are no facts alleged to show malice, oppression, and/or fraud on the part of this defendant. (<i>Nolin v. National Convenience Stores, Inc.</i> (1979) 95 Cal.App.3d 279, 285-286 [“It has long been the rule that conduct classified only as unintentional carelessness, while it may constitute negligence or even gross negligence, will not support an award of punitive damages”].) Accordingly, the punitive damages allegation at ¶ (e) of the prayer for damages (Complaint at 13:7) is ordered stricken as to this defendant, with leave to amend. The motion is DENIED as to defendant Volkswagen Group of America, Inc., who is named in the 6th cause of action for fraudulent concealment, and which fraud claim is alone sufficient to support punitive damages. (<i>Stevens v. Superior Court</i> (1986) 180 Cal.App.3d 605, 610 [“Civil Code section 3294 ... treats ‘oppression, fraud, or malice’ as separate bases for imposition of exemplary damages ... [a] fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury ... [t]he pleading of fraud is sufficient”].) Plaintiff is granted 15 days to file a First Amended Complaint addressing punitive damages as to defendant Unstoppable Automotive Group AMV LLC, dba Audi Mission Viejo, if at all. Case Management Conference set February 5, 2027 at 8:30 a.m. in Department C44. Plaintiff shall give notice.
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